



Income Tax Department

Ministry of Finance, Government of India

⁶⁵[Special provision for computing profits and gains of shipping business other than cruise shipping in case of non-residents.]

44B. (1) Notwithstanding anything to the contrary contained in sections 28 to 43A, in the case of an assessee, being a non-resident, engaged in the business of operation of ships, ⁶⁶[other than cruise ships referred to in section 44BBC,] a sum equal to seven and a half per cent of the aggregate of the amounts specified in sub-section (2) shall be deemed to be the profits and gains of such business chargeable to tax under the head "Profits and gains of business or profession".

(2) The amounts referred to in sub-section (1) shall be the following, namely :—

- (i) the amount paid or payable (whether in or out of India) to the assessee or to any person on his behalf on account of the carriage of passengers, livestock, mail or goods shipped at any port in India; and
- (ii) the amount received or deemed to be received in India by or on behalf of the assessee on account of the carriage of passengers, livestock, mail or goods shipped at any port outside India.

Explanation.—For the purposes of this sub-section, the amount referred to in clause (i) or clause (ii) shall include the amount paid or payable or received or deemed to be received, as the case may be, by way of demurrage charges or handling charges or any other amount of similar nature.

65. Sub. for the marginal heading "Special provision for computing profits and gains of shipping business in the case of non-residents" by Act No. 15 of 2024, w.e.f. 1-4-2025.

66. Ins. by Act No. 15 of 2024, w.e.f. 1-4-2025.

